



Department of Public Safety

Division of State Patrol

RULES AND REGULATIONS CONCERNING THE PERMITTING, ROUTING & TRANSPORTATION OF HAZARDOUS AND NUCLEAR MATERIALS AND THE INTRASTATE TRANSPORTATION OF AGRICULTURAL PRODUCTS IN THE STATE OF COLORADO

8 CCR 1507-25

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Part 1 General Statements

1.0 Authority.

The Chief of the Colorado State Patrol is authorized by Section 42-20-108 (1) and (2), CRS, and Sections 42-20-403, 42-20-504, and 42-20-508 to promulgate rules and regulations for the permitting, routing, and safe transportation of hazardous and nuclear materials by motor vehicle within Colorado, in either interstate or intrastate transportation. Additionally, consistent with Section 42-20-108.5, CRS, the Chief of the Colorado State Patrol is also authorized to adopt rules and regulations exempting agricultural products from hazardous materials rules.

1.1 Applicability.

These rules and regulations apply to all persons who transport, ship, or cause to be transported or shipped, hazardous, nuclear, or agricultural materials or products by motor vehicle over the public roads of Colorado.

1.2 Required Compliance with 8 CCR 1507-1.

All commercial vehicles transporting hazardous and/or nuclear materials must comply with 8 CCR 1507-1, the Rules and Regulations Concerning the Minimum Standards for the Operation of Commercial Vehicles.

1.3 General Definitions.

Unless otherwise specified, definitions of general applicability throughout these rules are:

1.3.1 CDOT: Colorado Department of Transportation.

1.3.2 CDPHE: Colorado Department of Public Health and Environment.

- 1.3.3 CDPS:** Colorado Department of Public Safety.
- 1.3.4 CFR:** Code of Federal Regulations.
- 1.3.5 Chief:** The Chief of the Colorado State Patrol. Unless otherwise specified, also includes the designees of the Chief of the Colorado State Patrol where the designation is permissible and consistent with state statute and applicable CDPS and CSP rules and policies.
- 1.3.6 CSP:** Colorado State Patrol.
- 1.3.7 CVSA:** Commercial Vehicle Safety Alliance.
- 1.3.8 Enforcement Official:** As identified within Section 42-20-103 (2), CRS, is limited to a peace officer who is an officer of the CSP as described in Sections 16-2.5-101 and 16-2.5-114, CRS; a certified peace officer who is a certified Port of Entry officer as described in Sections 16-2.5-102 and 16-2.5-115, CRS; a peace officer who is an investigating official of the Public Utilities Commission as described in Sections 16-2.5-101 and 16-2.5-143, CRS; or any peace officer as described in Section 16-2.5-101, CRS.
- 1.3.9 FMCSA:** Federal Motor Carrier Safety Administration.
- 1.3.10 FMCSR:** Federal Motor Carrier Safety Regulations.
- 1.3.11 Hazardous Materials:** As defined within Section 42-20-103 (3), CRS, are those materials listed in Tables 1 and 2 of 49 CFR 172.504, excluding highway route-controlled quantities of radioactive materials as defined in 49 CFR 173.403 (2), excluding ores and the wastes and tailing therefrom, and excluding special fireworks where the aggregate amount of flash powder does not exceed 50 pounds.
- 1.3.12 Motor Vehicle:** As defined within Section 42-20-103 (4), CRS, is any device capable of moving from place to place on public roads. The term includes any motorized vehicle or any such vehicle with a trailer or semi-trailer attached thereto.
- 1.3.13 MOU:** Memorandum of Understanding.
- 1.3.14 OOS:** Out-of-Service.
- 1.3.15 Person:** As defined within Section 42-20-103 (6), CRS, is an individual, a corporation, a government or governmental subdivision or agency, a partnership, an association, or any other legal entity; except that separate divisions of the same corporation may, at their request, be treated as separate persons.

1.3.16 POE: Port of Entry, a section of the CSP.

1.3.17 PUC: Public Utilities Commission.

Part 2 Hazardous Materials Transportation (HMT)

HMT 2.0 Application of 49 CFR to the Transportation of Hazardous Materials.

The transportation of hazardous materials by motor vehicle must occur consistently with the regulations contained in

49 CFR 107 Hazardous Materials Program Procedures

49 CFR 171 General Information, Regulations and Definitions

49 CFR 172 Hazardous Materials Table, Special Provisions, Hazardous Materials Communications, Emergency Response Information, Training Requirements, and Security Plans

49 CFR 173 Shippers- General Requirements for Shipments and Packagings

49 CFR 177 Carriage by Public Highway

49 CFR 178 Specifications for Packagings

49 CFR 180 Continuing Qualification and Maintenance of Packagings

49 CFR 387 Minimum Levels of Financial Responsibility for Motor Carriers

49 CFR 397 Transportation of Hazardous Materials, Driving and Parking Rules

of the United States Department of Transportation Hazardous Materials Regulations as the same were effective on October 1, 2025. Section 42-20-108 (3), CRS, provides that these federal regulations may be used as general guidelines by the Chief in the promulgation of these rules. These rules adopt the aforementioned sections of the CFR to support the enforcement of regulations concerning the transportation of hazardous materials with the following modifications:

HMT 2.0.1 Definition of Person.

The definition of a person is as it is described within these rules. The definition of person set forth within 49 CFR 107.1 is not applicable.

HMT 2.0.2 Inapplicability of Federal Hazardous Materials Regulations Exemption to Persons and Functions.

49 CFR 171.1 (d) (5), as it exempts specific functions from the hazardous materials regulations, is specifically not adopted by these rules and does not apply.

HMT 2.1 CVSA Inspection Standards.

Through an MOU with the CVSA dated October 21, 2022, the CSP, as a division of the CDPS, agrees to adopt the CVSA inspection procedures, decal application policies, and OOS criteria established for the inspection of commercial motor vehicles.

HMT 2.2 Applicability of CVSA Operations Manual.

Enforcement Officials performing safety inspections on motor vehicles transporting hazardous materials will use the inspection procedures, decal application policies, and OOS criteria, as each appears in the CVSA Operations Manual, effective April 1, 2026.

HMT 2.3 Hazardous Materials Incident Notification.

A driver of a motor vehicle transporting hazardous materials as cargo involved in a hazardous materials spill or incident must immediately provide notice of the nature and location of the hazardous materials spill or incident to the law enforcement agency in closest proximity thereto, consistent with the requirements of Section 42-20-113 (3), CRS.

HMT 2.3.1 Immediate Notice Regarding Hazardous Materials as Cargo.

A driver of a motor vehicle involved in an incident having the potential to result or that does result in the spilling or release of cargo classified as hazardous materials will immediately notify the nearest law enforcement agency of the location of the incident and any other information minimally necessary for an informed response.

HMT 2.3.2 Immediate Notice Regarding Spill or Release of Fuel from Vehicle Fuel Tank.

A driver of a motor vehicle involved in a spill of hazardous material from a fuel tank providing fuel for the motor vehicle and/or equipment thereon will give immediate notice of the spill or release location and any other information minimally necessary for an informed response to the nearest law enforcement agency.

HMT 2.3.3 Minimally Necessary Information Required.

“Minimally necessary information,” as it applies to notification of hazardous materials incidents under Part HMT 2.3 of these rules, includes but is not limited to the following:

HMT 2.3.3.1 The name of the person reporting the incident;

HMT 2.3.3.2 The phone number at which the person reporting the incident can be contacted;

HMT 2.3.3.3 The type of incident;

HMT 2.3.3.4 The type of motor vehicle involved;

HMT 2.3.3.5 The name of the motor carrier involved, if applicable;

HMT 2.3.3.6 The extent of injuries, if any;

HMT 2.3.3.7 The classification, name, and quantity of the hazardous materials involved; and

HMT 2.3.3.8 If a continuing danger to public safety or the environment exists at the scene.

HMT 2.3.4 Notice to CSP and CDPHE.

As soon as possible after making an initial notification of a hazardous material spill/incident to the nearest law enforcement agency, the driver of the motor vehicle involved, or a company representative will provide the same minimally necessary information to the:

HMT 2.3.4.1 CSP at (303) 239-4501; and

HMT 2.3.4.2 The CDPHE Environmental Spill Reporting Line at (877) 518-5608.

HMT 2.4 Authority to Inspect Motor Vehicles, Books, and Records.

Enforcement Officials, as are identified within these rules or as is consistent with 8 CCR 1507-1, are authorized by Section 42-4-235 (1) (a), CRS, to perform commercial motor vehicle inspections.

HMT 2.4.1 Enforcement Officials Must Meet Inspector Qualifications.

Enforcement Officials authorized to perform commercial motor vehicle safety inspections by Section 42-4-235 (1) (a), CRS, and upon the drivers thereof, are required to meet the inspector qualifications referenced in Section 42-4-235 (4) (a) (I), CRS, when performing CVSA North American Standard Safety Inspections. All Enforcement Officials performing Level I – VI CVSA North American Standard Safety Inspections must also maintain the certification requirements prescribed in the current CVSA Operations Manual referenced by these rules and incorporated into 8 CCR 1507-1.

HMT 2.4.2 Authority to Inspect.

Enforcement Officials have the authority to inspect motor vehicles, motor vehicle drivers, cargo, and any required documents outlined in 49 CFR

383, 387, 390, 391, 392, 393, 395, 397, and 399, as revised October 1, 2025.

HMT 2.4.3 CSP Enforcement Officials and Compliance Reviews.

CSP Enforcement Officials certified by the FMCSA according to 49 CFR 385, Subpart C, to perform Compliance Reviews and Safety Audits have the authority to enter the facilities of and inspect any motor carrier consistent with Section 42-4-235 (1) (c), CRS, and any required records and supporting documents are outlined in 49 CFR 40, 380, 382, 383, 385, 387, 390, 391, 392, 393, 395, 396, 397, and 399, and Appendix A, revised October 1, 2025.

HMT 2.4.4 Motor Vehicle OOS Criteria.

The CSP incorporates by reference the CVSA North American Uniform OOS Criteria for enforcement purposes, as revised and effective April 1, 2026. Enforcement Officials will use the CVSA North American Uniform OOS Criteria when determining whether a motor vehicle or driver should be placed OOS according to Section 42-20-110, CRS.

HMT 2.4.5 Sharing of Violation Data with CDOT.

The CSP will inform the CDOT in writing of information relevant to violations identified and assessed against a person having a hazardous materials transport permit and engaged in the transportation of hazardous materials. Violations discovered during inspections or compliance reviews are shared to promote the joint interests of public safety and effective enforcement of hazardous materials transport permit conditions, these rules, relevant statutes, and regulations.

HMT 2.4.6 Penalties for Violations.

Any person shipping or transporting hazardous materials in violation of any of the rules of this part is guilty of a misdemeanor. Upon conviction thereof, a person will be subject to a fine and/or imprisonment, as each is indicated within Section 42-20-109, CRS.

Part 3 Hazardous Materials Permits (HMP)

HMP 3.0 Definitions.

For purposes of this part, the following definitions apply:

HMP 3.0.1 Liability Insurance or Surety: As used in these rules, means insurance or surety for public liability.

HMP 3.0.2 Longer Vehicle Combination (LVC): Is any number of vehicle configurations, including a truck tractor as a power unit and multiple trailer combinations, as identified within Section 42-4-505 (2) (a) – (d), CRS.

HMP 3.0.3 Peace Officer: Is defined in Section 16-2.5-101, CRS, and includes Peace Officers who are certified Port of Entry Officers as are described in Sections 16-2.5-101 and 16-2.5-115, CRS.

HMP 3.0.4 Public Liability: Is a liability for bodily injury or property damage, including liability for environmental restoration, as discussed within 49 CFR 387.5.

HMP 3.0.5 Transmix: Also known as Petroleum Distillates, N.O.S., and only as used within this section, is a mixture of refined products specifically and individually exempted under HMP 3.4.3 of these rules. Transmix, as defined by these rules, is a combination of gasoline, diesel, jet fuel, and/or other refined petroleum products transported to processing plants for purposes of distillation and product separation. Transmix falls under UN1268 and is placarded as Class 3 hazardous materials.

HMP 3.1 Annual Hazardous Materials Permit Applications and Fees.

The fees assessed for hazardous materials permits, annually or per trip, are set within Colorado statute under Section 42-20-202 (1) (b) and (c), CRS. The annual hazardous materials transport permit fee schedule is based on the number of motor vehicles an applicant operates within Colorado and is found within Section 42-20-202 (1) (b), CRS. Consistent with Section 42-20-201, CRS, the CDOT is responsible for the review and approval of any submitted applications and renewals for annual hazardous materials transport permits.

HMP 3.1.1 All Annual Applications Processed by CDOT.

All applications and renewals for Hazardous Materials Transportation Permits, and all applicable fees due therefor, are to be submitted to the CDOT Freight Mobility and Safety Branch. The CDOT Freight Mobility and Safety Branch may be contacted at 2829 W. Howard Pl., Denver, CO., 80204, or by phone at (303)-757-9539. Information may also be found online at <https://coopr.codot.gov>. All applicable fees must be paid in a manner acceptable to the CDOT.

HMP 3.2 Conditions Applicable to Hazardous Materials Permits.

Several conditions apply to the issue and use of annual hazardous materials permits. These conditions, detailed within applicable statutes, also include, but are not limited to, the following specifically identified requirements:

HMP 3.2.1 USDOT Number Required.

Hazardous materials transporters within the state of Colorado are required to obtain a USDOT identification number under the provisions of 49 CFR 390.19 before the submission of an annual permit application.

HMP 3.2.2 Annual Permit Fee Affected by Number of Vehicles.

The fee assessed by the CDOT for an annual permit is determined by the number of vehicles being permitted and will be as described within Section 42-20-202 (1) (b), CRS.

HMP 3.2.3 Must Communicate an Increase in Vehicles to CDOT.

Any increase in the total number of declared vehicles permitted to be operating within or through Colorado must be communicated in writing through the completion of an amended request and the payment of any additional fees determined to be due to the CDOT.

HMP 3.2.4 Must Obtain and Maintain Public Liability Insurance Consistent with Section 42-20-202 (2) (a) and (3) (a), CRS.

Persons applying for and receiving an annual hazardous materials transport permit must always obtain and maintain public liability insurance or a surety that must not be less than the minimum limits established within 49 CFR 387, with schedules and endorsements covering all vehicles that may be operated by, for, or under the control of the applicant or permit holder. Applicant must file with the CDOT one of the following:

HMP 3.2.4.1 A National Association of Regulatory Utility Commission (NARUC) "Form E," "Uniform Major Carrier Bodily Injury and Property Damage Liability Certificate of Insurance," executed by a duly authorized agent of the insurer. Also required with this filing is the MCS-90, "Endorsement for Motor Carrier Policies of Insurance for Public Liability under Sections 29 and 30 of the Motor Carrier Act of 1980," issued by an insurer or insurers, and signed by an authorized representative of the insurance company or companies;

HMP 3.2.4.2 A Form MCS-82, "Motor Carrier Surety Bond for Public Liability under Section 30 of the Motor Carrier Safety Act of 1980," issued by a surety, and signed by an "Attorney-in-Fact," with a copy of the Power of Attorney attached; or

HMP 3.2.4.3 A copy of a written decision, order, or authorization of the FMCSA authorizing the motor carrier to self-insure under 49 CFR 387.309.

HMP 3.2.5 All Liability or Insurance Coverage Must Match the Exact Name.

All insurance and surety forms coverage must be filed using or under the exact name, initial, corporate, and trade name if any, and address, as it is included in the annual hazardous materials permit application filed and maintained by the CDOT.

HMP 3.2.6 Notice of Insurance or Surety Cancellation or Non-Renewal Required.

Every insurance certificate or surety bond required by and filed with the CDOT must be kept in full force and effect, unless and until canceled by a 30-day written notice or not renewed by a 90-day written notice on a NARUC "Form K," (Uniform Notice of Cancellation of Motor Carrier Insurance Policies); "Form BMC 35," (Notice of Cancellation Motor Carrier Insurance); or "Form BMC 36," (Notice of Cancellation of Motor Carrier Surety Bond), as may be appropriate, from the insurer or surety to the CDOT. The 30-day and 90-day notice will commence from the date the notice is received by the CDOT, and the insurance certificate or surety bond must contain a statement to this effect.

HMP 3.2.7 No Unauthorized Alterations.

No annual permit is to be altered, amended, or copied unless authorized in writing by the CDOT or, in the case of a single-trip permit (as discussed within HMP 3.3 of these rules), by an Enforcement Official.

HMP 3.2.8 Permits Must be Available for Inspection.

The required permits must be readily available for inspection as required by Section 42-20-203, CRS. This requirement is met if a Peace Officer or Enforcement Official can electronically verify the permit is valid at the time of contact.

HMP 3.3 Single Trip Hazardous Materials Permits.

Under Section 42-20-202 (1) (c), CRS, single-trip permits may be obtained from the CSP at all CSP POE weigh stations. Each person transporting hazardous materials in, to, from, or through Colorado who has not previously obtained a valid annual hazardous materials transport permit from the CDOT must apply for and pay for a single-trip hazardous materials transport permit at the nearest CSP POE weigh station, CDOT office, or online using the CDOT Colorado Oversize Overweight Permitting and Routing (COOPR) System.

HMP 3.3.1 Valid for 72 Hours.

Each single-trip permit will be valid for a single continuous business venture, but in no event will the permit be valid for more than 72 hours unless extended by any Enforcement Official for any reason the official

deems advisable. Reasons for an extension by an Enforcement Official may include mechanical difficulties and road and weather conditions.

HMP 3.3.2 Issued Upon Approval and Payment.

A single-trip hazardous materials permit will be issued upon the approval of a complete single-trip permit application and the payment of a \$25 permit fee.

HMP 3.3.3 Proof of Liability Insurance or Surety Required.

Persons applying for a hazardous materials transportation single-trip permit are required by Section 42-20-202 (3) (a), CRS, to supply proof of liability insurance or surety or sign a verification at the time of the permit application.

HMP 3.3.4 Subsequent Proof Required Where Verification Statement Submitted- Single-Trip Hazardous Materials Permit.

Applicants who sign a verification instead of supplying acceptable proof of financial responsibility (liability insurance or surety) must forward it to the CDOT Freight Mobility and Safety Branch within 30 days of the permit's issue. With this must be included:

HMP 3.3.4.1 A copy of the Applicant's single-trip hazardous materials permit; and

HMP 3.3.4.2 A legible copy of acceptable proof of financial responsibility as is required by Section 42-20-202, CRS, having matching information as is defined in paragraph HMP 3.2.5 of these rules.

HMP 3.4 LVCs and the Transportation of Hazardous Materials.

LVCs operating under the provisions of the CDOT Rules and Regulations promulgated according to the provisions of Section 43-4-505, CRS, are prohibited from transporting the following specified hazardous material types and quantities:

HMP 3.4.1 Table 1, 49 CFR 172.504.

Any quantity of hazardous material within the hazard classes specified in 49 CFR 172.504, Table 1.

HMP 3.4.2 Table 2, 49 CFR 172.504.

Any material, unless otherwise specified herein, within the hazardous classes specified in 49 CFR 172.504, Table 2, that:

HMP 3.4.2.1 Exceeds 55 gallons per package.

HMP 3.4.2.2 Is transported in quantities using containment systems in excess of 3,500 gallons, except as provided in HMP 3.4.3 of these rules.

HMP 3.4.2.3 Is classified as a “Material Poisonous by Inhalation” as it is defined in 49 CFR 171.8.

HMP 3.4.2.4 Requires evacuation of populated areas as specified in Tables 1, 2, and 3 in the most current version of the North American Emergency Response Guidebook in publication as of February 1, 2024, as referenced by these rules.

HMP 3.4.3 Petroleum-Based Products are Exempt from LVC Transport Prohibition.

The prohibition of subparagraph HMP 3.4.2.2 does not apply to the following petroleum-based products when transported in bulk quantities in an LVC of the type described in Section 42-4-505 (c) and (d), CRS:

HMP 3.4.3.1 Gasoline, UN1203;

HMP 3.4.3.2 Diesel Fuel, NA1993;

HMP 3.4.3.3 Crude Oil, UN1267;

HMP 3.4.3.4 Liquefied Petroleum Gas (LPG), UN1075;

HMP 3.4.3.5 Aviation Fuel, UN1863; or

HMP 3.4.3.6 Transmix, UN1268.

HMP 3.4.4 Compliance with Other Applicable Laws.

Persons operating LVCs must operate consistently with all other relevant provisions of state law, rules, and regulations.

HMP 3.5 Penalties for Violations.

Upon conviction, any person shipping or transporting hazardous materials in violation of any rule in this Part 3 is subject to the penalties set forth within Section 42-20-204, CRS.

Part 4 Hazardous Materials Route Designation (HMR)

HMR 4.0 Definitions.

The definitions provided in Sections 42-20-103 and 29-22-101, CRS, apply to these rules and regulations. The following definitions also apply:

HMR 4.0.1 Petition: As used within these rules, means a CSP Hazardous Materials Route Designation Packet, including the route analysis process, worksheets, and petition resolution.

HMR 4.0.2 Petitioning Entity or Entities: As used within these rules, means local governmental entities, CDOT, a public highway authority, and any governmental entity that is a partner in a public-private partnership concerning any highway, road, or street it maintains, when making an application to the CSP for a new hazardous materials route designation, or a change to an existing route designation as it is allowed under Section 42-20-302 (1) (a) – (e), CRS.

HMR 4.0.3 Routing Factors: As used within these rules, these are factors that must be considered and specifically addressed as part of any application petitioning the CSP for a new hazardous materials route designation or to change an existing route designation. As it applies to petitions submitted to the CSP, Petitioning Entities must address each of the routing factors referenced by these rules and/or identified by 49 CFR 397.71 (b) (9). If a factor is inapplicable to a route petition, the Petitioning Entity must specifically indicate the factor and the basis for inapplicability.

HMR 4.0.4 Sensitive Areas: Sensitive Areas are areas that may experience a disparate impact in the event of exposure to the release of hazardous materials. This disparate impact may be environmental, social, etc., and could result in a greater demand for emergency and public resources in the event of an emergency related to the release of hazardous materials. Sensitive Areas include but are not limited to private homes; commercial buildings; special populations in hospitals, schools, prisons, stadiums, senior or group homes; communities having a higher number of ESL-speaking individuals or individuals having physical and/or mental disabilities, as compared to surrounding communities; water sources; and natural areas such as parks, wetlands, and wildlife reserves.

HMR 4.0.5 Special Populations: Groups, individuals, or institutions included in a population that could be potentially exposed in the event of a hazardous materials incident, which are also members of groups that may not be able or are unable to mobilize effectively in response to a threat to public health or safety without the assistance of emergency or other public services personnel.

HMR 4.1 Petition Applications for Route Designations.

Petitioning Entities seeking to petition for a new or change to an existing hazardous materials route designation should consult with and request guidance from the CDOT Freight Mobility and Safety Branch and the CSP Hazardous Materials Section concerning the process, format, and substance of the route petition.

HMR 4.1.1 Introductory Information from CDOT.

Introductory information on the petition application process, FAQs, and unit contact information from CDOT is available online at <https://codot.gov/business/hazmat-routing/HazmatRouteAnalysisRequest>. Correspondence to CDOT may be addressed to the CDOT Freight Mobility and Safety Branch at 2829 W. Howard Pl., Denver, CO., 80204.

HMR 4.1.2 Guidance Document is Available from the CSP Hazardous Materials Section.

A guidance document outlining the minimum required elements and documentation that should be included as part of a hazardous materials route designation petition application is available from the CSP Hazardous Materials Section upon request by calling (303)-273-1900 or by contacting the CSP Hazardous Materials Section online at <https://csp.colorado.gov/services-we-provide/hazardous-materials>.

HMR 4.2 Petition Application Submission According to Section 42-20-302, CRS.

Petitioning Entities making an application to the CSP for a new hazardous materials route designation or a change in an existing route designation consistent with Section 42-20-302, CRS, may submit a petition application for either purpose to the CSP, no more than once a year.

HMR 4.3 Consideration Factors of 49 CFR 397 are Adopted.

49 CFR 397 is adopted without amendment by these rules. All the factors identified for consideration by 49 CFR 397.71 (b) (9) apply to all new and existing hazardous materials routing petitions. 49 CFR 397.71 sets forth 13 categories of factors that must be considered when any new or existing hazardous materials route is the subject of a hazardous materials routing petition application. Any petition application delivered to the CSP after an initial CSP application review that does not include discussion of these factors will not be deemed to be received, will instead be determined incomplete, and will be returned to the submitting Petitioning Entity for correction and resubmission without prejudice. Broadly, these 13 categories are:

HMR 4.3.1 Population Density.

The population that will be potentially exposed in the event hazardous materials are released, inclusive of residents, employees, motorists, and other persons in the area, with specific discussion of any of those persons or groups that may be special populations. The relationship between population density levels and the potential release of hazardous materials must also be addressed.

HMR 4.3.2 Type of Highway.

The type and characteristics of the highway to be traveled must be identified.

HMR 4.3.3 Types and Quantities of Hazardous Materials.

The type and amount of hazardous materials that will or are normally transported along the petitioned route.

HMR 4.3.4 Emergency Response Capabilities.

An analysis of the emergency response capabilities resulting from consultation with the appropriate fire, law enforcement, and highway safety agencies. The analysis must consider and identify the proximity of facilities and resources to the potential impact zone in the event that hazardous materials are released and must be outlined within the petition application. Furthermore, local governmental authorities petitioning for a new or changes to an existing hazardous material route designation must provide the CSP Hazardous Materials Section with the following information on the hazardous materials emergency response services within their jurisdiction:

HMR 4.3.4.1 The names, addresses, points of contact, radio frequencies, call signs, and emergency and non-emergency phone numbers of all agencies who provide emergency services along the proposed route(s) and available alternatives;

HMR 4.3.4.2 Which of the agencies identified respond to hazardous materials incidents, and during what periods services are available;

HMR 4.3.4.3 Which of the agencies identified have emergency response teams, and the total number of teams each agency has;

HMR 4.3.4.4 The total number of emergency response personnel available for each agency, their level of hazardous materials training; and

HMR 4.3.4.5 An inventory list, or other information identifying the hazardous materials response equipment available from each agency.

HMR 4.3.5 Results of Community Outreach/Consultation.

The Petitioning Entity must include the results of any consultation conducted with persons and/or entities who will be affected by the petitioned-for routing or routing change.

HMR 4.3.6 Discussion of Specific Exposure and Risk Factors.

The Petitioning Entity must include a discussion specifying the exposure and risk factors associated with any of the hazardous materials likely to be transported along the petitioned route. Exposure risks for sensitive areas and special populations must be addressed.

HMR 4.3.7 Terrain Considerations.

Discussion of topography along and adjacent to the petitioned routing that may affect the severity of an accident, control of hazardous materials in the event of a release, and impact of the control and clean-up of the release of any hazardous materials must be included.

HMR 4.3.8 Continuity of Routes.

Information on any outreach efforts to adjacent jurisdictions to consult and ensure routing continuity should be included.

HMR 4.3.9 Alternate Routes.

Information relevant to any alternate routes considered must be included. Petitioning Entities should include detailed and specific information as to why the route being petitioned for is the most or more appropriate option and is safer than other options, or, in the event of an existing route, the current route. Any references to statistical data, published works, or written analysis require full reference information and may require a copy of the referenced information to be included as part of the petition application.

HMR 4.3.10 Effects on Commerce.

The routing proposed will not impose an unreasonable burden on interstate or intrastate commerce.

HMR 4.3.11 Delays in Transportation.

The routing proposed will not create unnecessary delays in the transport of hazardous materials.

HMR 4.3.12 Climatic Conditions.

Weather conditions that are unique to a proposed route must be addressed within the petition application, including the impact of weather conditions on the potential release of any hazardous materials, control of a hazardous materials release, and clean-up thereof.

HMR 4.3.13 Congestion and Accident History.

Petitioning Entities should also consider the congestion and accident history of the specific route they are petitioning to become a hazardous materials route or to make changes to, and the impact of these factors on the public emergency response and on general transportation in the event of a potential hazardous materials release.

HMR 4.4 Initial Petition Application Review Before CSP “Receipt.”

Before formal submission and receipt of a hazardous materials routing petition, Petitioning Entities may request an initial review of the application draft from the CSP Hazardous Materials Section. The initial review is limited only to determining that all required elements of the hazardous materials routing petition application are addressed by the applicant and identifying the need for any additional supporting documentation concerning statements and information contained within the application.

HMR 4.4.1 Initial Review Not an Opinion.

The initial review will not indicate an opinion of the CSP regarding the potential success of the petition application concerning the specified route designation or route designation amendment(s) proposed.

HMR 4.4.2 Results of Initial Review Communicated by Email.

Any findings resulting from an initial petition review will be informally communicated to the Petitioning Entity by email at an address provided by the Petitioning Entity to the CSP Hazardous Materials Section.

HMR 4.4.3 Failure to Request Review is Not Prejudicial.

The decision of a Petitioning Entity not to request and make available a hazardous materials routing petition to the CSP Hazardous Materials Section for initial review will not prejudice the receipt of the petition application. Petition applications submitted by Petitioning Entities that do not receive an initial review and are returned as not received for being incomplete will be encouraged to seek an initial review of the application upon resubmission in the written response of the CSP Hazardous Materials Section returning the application.

HMR 4.5 Incomplete Hazardous Materials Routing Petition Applications.

Hazardous materials routing petition applications delivered to the CSP will only be determined completely consistent with Section 42-20-302 (4), CRS, if the application satisfies all application criteria set forth within these rules, relevant statutes, and federal regulations.

HMR 4.5.1 Return for Completion.

Applications determined to be incomplete will be returned to the Petitioning Entity with a written statement from the CSP Hazardous Materials Section within 20 calendar days of submission. For purposes of these rules, the date of submission will be the date a hazardous materials routing application is delivered to the CSP Hazardous Materials Section. The written statement from the CSP included with the returned application will provide guidance identifying what information is missing from, or is insufficiently addressed within, the hazardous materials routing petition application.

HMR 4.5.2 Applications May Require Additional Documentation.

Upon submission, the CSP Hazardous Materials Section may determine that additional information, supporting statements, conclusions, or efforts related to the petition may be required. Petitioning Entities will have 14 calendar days to respond to any request from the CSP Hazardous Materials Section for this information. Failure to provide information within 14 calendar days may result in the petition application being determined incomplete and returned to the Petitioning Entity, consistent with these rules. Satisfactory receipt of the requested information will result in the routing petition application being determined “complete.”

HMR 4.5.3 Single Application Per Year Prohibition Inapplicable.

Hazardous materials routing petition applications determined to be incomplete and returned to Petitioning Entities for completion and resubmission are not subject to the statutory one application per year limitation supported by these rules and detailed within Section 42-20-302, CRS. This limitation only applies to petition applications submitted to the CSP Hazardous Materials Section consistent with Section 42-20-302 (1), CRS, and determined to be “complete” according to Section 42-20-302 (4), CRS. All hazardous materials routing petition applications delivered to the CSP Hazardous Materials Section are “submitted” as required by Section 42-20-302 (1), CRS, but a petition application is not considered to be accepted and “Received” by the CSP until the petition is determined to be “complete” according to Section 42-20-303 (4), CRS.

HMR 4.6 Complete Petition Application Filing Date.

The filing date for a “complete” hazardous materials routing petition application, as it is presented within Section 42-20-302 (4), CRS, is the date of its acceptance and receipt by the CSP. Petitioning Entities will be notified in writing of the date of receipt/filing. Additional details outlining statutory requirements applicable to the hazardous materials route petitioning process, and relevant timelines thereto, will also be included.

HMR 4.7 Delivery of Draft or Final Hazardous Materials Routing Petition Applications.

Petitioning Entities should deliver prepared hazardous materials routing petitions for initial review or consideration as complete petition applications to the CSP Hazardous Materials Section, 15065 S. Golden Rd., Golden, CO., 80401-3990. Petitioning Entities may also arrange for electronic delivery of hazardous materials route petition applications by first calling the CSP Hazardous Materials Section at (303)-273-1900.

HMR 4.8 Hazardous Materials Route Designation Signs.

Under Section 42-20-303, CRS, local government authorities electing to use signs to provide notice of approved hazardous materials route designations within their jurisdiction must use the hazardous materials route designation and/or restriction sign standards adopted by the CDOT.

HMR 4.8.1 Location of Signage Must be Specified.

Local government authorities must specify the location of each sign erected to mark an approved hazardous materials route in writing to the CSP Hazardous Materials Section within 60 days of route designation approval.

HMR 4.9 Use of Professional Quality Maps.

Local government authorities must submit copies of their professional-quality maps within 60 days of an approved hazardous materials route designation to the CSP Hazardous Materials Section for approval. Local government authorities electing to use professional quality maps to identify approved hazardous materials route designations within their jurisdictions, consistent with Section 42-20-302 (8), CRS, must meet the following minimum requirements:

HMR 4.9.1 Map Scale.

The map scale should be of sufficient proportions to clearly show the passage of a designated hazardous materials route within or through the jurisdiction.

HMR 4.9.2 Map Colors.

Designated hazardous materials routes or other approved route restrictions must be printed in red on a white background. All other printing should be in black.

HMR 4.9.3 Map Legend.

The map legend should clearly describe the graphic representations used within the map.

HMR 4.9.4 Map Graphics.

The map should use graphic symbols that clearly represent the differences between designated hazardous materials and other routes, other highways, and jurisdiction boundaries.

HMR 4.9.5 Map Route Information.

The map should include a telephone number where the operator of a motor vehicle transporting hazardous materials can obtain additional information on hazardous materials and other routes, guidance regarding restrictions within the jurisdiction, or emergency assistance on a 24-hour basis.

HMR 4.10 Data Changes Affecting Approved Hazardous Materials Route Petitions.

Petitioning Entities must communicate changes in the original data and/or information relied upon to evaluate the risk level associated with an approved route to the CSP Hazardous Materials Section immediately, or as soon as is practicable, following the change. A change would be, but not be limited to:

HMR 4.10.1 Accident Rate.

A substantial change in the accident rate initially reported; or

HMR 4.10.2 Consideration Factors.

A substantial change in the mandatory or subjective consideration factors affecting the route or as are required to be considered by 49 CFR 391.71 (b) (9), and/or applicable statutes or these rules.

HMR 4.10.3 Emergency Services Information.

Any changes to information relevant to available emergency services. Any changes about emergency services identified by a Petitioning Entity must be communicated in writing as soon as possible, but no later than 45 days following the change to the CSP Hazardous Materials Section.

HMR 4.10.3.1 CDOT Exempted. The CDOT is generally not required to provide notice of changes to relevant emergency services along designated hazardous materials routes. However, where the CDOT submits a petition for a local governmental authority by agreement according to Section 42-20-302 (9), CRS, provisions must be made within the agreement between the CDOT and the local governmental authority for compliance with this reporting requirement.

HMR 4.11 Designated Route Reviews, Surveys, and Exemptions.

The CSP will periodically review the status of designated routes to determine if the approval terms of Section 42-20-302 (8) (a) (I) – (IV), CRS, continue to be met. Upon review, routes demonstrating a change in the risk level of the route toward a higher risk factor, or that are impacted significantly by a change to a mandatory or subjective factor, may be subject to reevaluation by the CSP.

HMR 4.11.1 Route Determined to No Longer Meet Section 42-20-302 (8) (a) (I) – (IV), CRS.

The CSP will notify Petitioning Entities in writing if any designated hazardous materials route within their jurisdiction no longer meets the acceptance terms specified within Section 42-20-302 (8) (a) (I) – (IV), CRS, following reevaluation or a route review.

HMR 4.11.1.1 CSP Consultation Concerning Route Status. If a designated hazardous material route no longer meets the approval terms of Section 42-20-302 (8) (a) (I) – (IV), CRS, the CSP will consult with the Entity to coordinate the submission of a revised petition. Petitions submitted for a change in an existing route designation are subject to the conditions and procedures of Section 42-20-302, CRS.

HMR 4.11.2 Completion of Designated Route Road Surveys.

The CSP will conduct complete route surveys on designated hazardous materials routes on an as-needed basis. These surveys will be conducted to determine the type and quantity of materials being transported and the frequency of such transportation. Surveys conducted in incorporated areas will only be done after consultation with the appropriate local government agency.

HMR 4.11.3 No Additional Exceptions or Exemptions.

There will be no exceptions and/or exemptions to designated hazardous materials routes other than those already specified within Title 42, Article 20, CRS.

HMR 4.12 Hazardous Materials Parking Regulations and Ordinances.

The approval criteria set forth by these rules herein apply only to those parking regulations and ordinances submitted by local governmental jurisdictions that affect vehicles transporting hazardous materials operating in conjunction with the use of a designated hazardous materials route or routes. Local governmental jurisdictions requiring approval of parking regulations or ordinances under Section 42-20-302, CRS, must submit a copy of the proposed regulations or ordinances to the CSP Hazardous Materials Section for review consistent with these rules.

HMR 4.12.1 Must Not Unreasonably Limit Parking.

For purposes of these rules, parking regulations or ordinances may be deemed to unreasonably limit parking of vehicles transporting hazardous materials when they are at variance with and more stringent than the regulations of the United States Department of Transportation published in 49 CFR 397, as revised October 1, 2025. Parking regulations or ordinances adopted by local governmental jurisdictions according to the authority provided in Section 42-20-302 (2), CRS, as it is amended, must not unreasonably limit parking:

HMR 4.12.1.1 On or near a designated hazardous materials route;

HMR 4.12.1.2 To pick up or deliver hazardous materials;

HMR 4.12.1.3 In an emergency, i.e., breakdown or accident; or

HMR 4.12.1.4 For a rest stop, i.e., meals, restroom breaks, or to comply with the driver's hours of service requirements as they are defined in 49 CFR 395, revised October 1, 2025.

HMR 4.12.2 No Special Payment or Permit is Required.

No parking regulation or ordinance will require a permit or payment of a fee for parking, which is necessary and incident to the transportation of hazardous materials on or near a hazardous materials route. This provision does not apply where fees are collected from all motor vehicles, regardless of the type of commodity being transported, i.e., metered parking.

HMR 4.13 Routes Designated for the Transportation of Hazardous Materials.

Permanently designated hazardous materials routes for the transportation of hazardous materials are as specified herein:

HMR 4.13.1 North – South Hazardous Materials Routes Designated Under Section 42-20-305, CRS:

HMR 4.13.1.1 Colorado 9 from US 40 in Kremmling to Interstate 70 in Silverthorne.

HMR 4.13.1.2 Colorado 13 from Wyoming to Moffat County Road 183 North of Craig.

HMR 4.13.1.3 Colorado 13 from US 40 West of Craig South to US 6 West of Rifle.

- HMR 4.13.1.4** Colorado 17 from US 285 near Mineral Hot Springs to US 160 near Alamosa.
- HMR 4.13.1.5** Interstate 25 from Wyoming to New Mexico.
- HMR 4.13.1.6** Colorado 47 from Interstate 25 to the junction of US 50.
- HMR 4.13.1.7** Colorado 71 from Colorado 14 to US 24 in Limon (East junction).
- HMR 4.13.1.8** Colorado 71 from US 24 in Limon (West junction) to US 50 near Rocky Ford.
- HMR 4.13.1.9** Colorado 79 from Colorado 52 to Interstate 70 at Bennet.
- HMR 4.13.1.10** Colorado 83 from US 24 to Colorado 115.
- HMR 4.13.1.11** Colorado 91 from Interstate 70 to US 24 near Leadville.
- HMR 4.13.1.12** Colorado 113 from Nebraska to US 138.
- HMR 4.13.1.13** Colorado 115 from Colorado 83 to US 50.
- HMR 4.13.1.14** Colorado 119 from Colorado 157 to Colorado 52.
- HMR 4.13.1.15** Colorado 125 from Wyoming to US 40 West of Granby.
- HMR 4.13.1.16** Colorado 127 from Wyoming to Colorado 125.
- HMR 4.13.1.17** US 138 from Colorado 113 to US 6 (Chestnut St.) in Sterling.
- HMR 4.13.1.18** Colorado 139 from Colorado 64 in Rangely to Interstate 70 near Loma.
- HMR 4.13.1.19** Colorado 141 from Interstate 70 business loop near Grand Junction to US 50.
- HMR 4.13.1.20** Colorado 141 from US 50 to US 491.
- HMR 4.13.1.21** Colorado 157 from US 36 to Colorado 119.
- HMR 4.13.1.22** Interstate 225 from Interstate 70 to Interstate 25.
- HMR 4.13.1.23** US 287 from US 40 in Kit Carson to Oklahoma.

- HMR 4.13.1.24** US 285 from US 160 in Alamosa to New Mexico.
- HMR 4.13.1.25** US 285 from Colorado 470 to Colorado 112.
- HMR 4.13.1.26** US 491 from Utah to New Mexico.
- HMR 4.13.1.27** US 285 from Colorado 112 to US 160.
- HMR 4.13.1.28** US 85 from Wyoming to Interstate 76.
- HMR 4.13.1.29** Colorado 71 from Nebraska to Colorado 14.
- HMR 4.13.1.30** US 385 from Interstate 76 in Julesburg to US 40 in Cheyenne Wells.
- HMR 4.13.1.31** The City of Lamar's Second Street from US 50/385 to Maple Street.
- HMR 4.13.1.32** The City of Lamar's Maple Street from Second Street to US 50/287.
- HMR 4.13.1.33** The City of Craig's Great Divide Road from US 40 North to the city limits.
- HMR 4.13.1.34** Moffat County Road 7 (Great Divide Road) from the Craig city limits North to Moffat County Road 183.
- HMR 4.13.1.35** Moffat County Road 183 from Moffat County Road 7 (Great Divide Road) East to Colorado 13.
- HMR 4.13.1.36** E-470 between the South Interchange with Interstate 25 at Exit 194 and through to the North Interchange with Interstate 25 at Exit 228.

HMR 4.13.2 East – West Hazardous Materials Routes Designated Pursuant to Section 42-20-305, CRS:

- HMR 4.13.2.1** US 6 (Loveland Pass) from Interstate 70 just East of the Eisenhower/Johnson Tunnels to Interstate 70 at Silverthorne.
- HMR 4.13.2.2** US 6 from Colorado 13 West of Rifle West to Exit/Entrance number 87 on Interstate 70.
- HMR 4.13.2.3** US 6 from State Highway 14 (Main St.) in Sterling to Nebraska.
- HMR 4.13.2.4** Colorado 10 from Interstate 25 in Walsenburg to US 50 in La Junta.

- HMR 4.13.2.5** Colorado 14 from US 40 to Colorado 125.
- HMR 4.13.2.6** Colorado 14 from Interstate 25 to US 6 in Sterling.
- HMR 4.13.2.7** US 24 from Colorado 91 at Leadville to Interstate 25 in Colorado Springs.
- HMR 4.13.2.8** US 24 from Colorado 83 to Interstate 70 at West Limon (Exit 359).
- HMR 4.13.2.9** US 24 business route from US 24 on the West side of Limon to the West junction of Colorado 71.
- HMR 4.13.2.10** US 24 business route from the East junction of Colorado 71 (in Limon) to Interstate 70 (Exit 363).
- HMR 4.13.2.11** US 34 from Interstate 25 to Interstate 76.
- HMR 4.13.2.12** US 34 from the West junction of Colorado 71 to Nebraska.
- HMR 4.13.2.13** US 36 from Interstate 25 to Colorado 157.
- HMR 4.13.2.14** US 36 from Interstate 70 in Byers to Kansas.
- HMR 4.13.2.15** US 40 from Utah to the intersection of Colorado 13 West of Craig.
- HMR 4.13.2.16** US 40 from Moffat County Road CG 2 (First Street) just East of Craig to Interstate 70.
- HMR 4.13.2.17** US 40 from Interstate 70 (Exit 363) in Limon to Kansas.
- HMR 4.13.2.18** US 50 from the North junction of Colorado 141 near Grand Junction to the junction of the City of Delta's Confluence Drive near milepost 69.8 and the reverse.
- HMR 4.13.2.19** The City of Delta's Confluence Drive between US 50 Milepost 69.8 and US 50 Milepost 72.
- HMR 4.13.2.20** US 50 from the junction of the City of Delta's Confluence Drive near milepost 72 to Kansas, and the reverse.
- HMR 4.13.2.21** Colorado 52 from Colorado 119 to Colorado 79.
- HMR 4.13.2.22** Colorado 64 from US 40 in Dinosaur to Colorado 13.

HMR 4.13.2.23 Interstate 70 from Utah to US 6 at Silverthorne (Loveland Pass).

HMR 4.13.2.24 Interstate 70 from US 6 just East of Loveland Pass to Interstate 25.

HMR 4.13.2.25 Interstate 70 from Interstate 27 to Kansas.

HMR 4.13.2.26 Interstate 70 Business Route from Interstate 70 East of Grand Junction to Colorado 141.

HMR 4.13.2.27 Interstate 76 from Interstate 25 to Nebraska.

HMR 4.13.2.28 Colorado 112 from US 285 to US 160.

HMR 4.13.2.29 US 160 from New Mexico to Interstate 25 Business Route in Walsenburg, South to Exit 49 on Interstate 25.

HMR 4.13.2.30 Interstate 270 from Interstate 70 to Interstate 76.

HMR 4.13.2.31 Colorado 470 from US 285 to Interstate 70.

HMR 4.13.2.32 US 550 from US 160 to New Mexico.

HMR 4.13.2.33 The City of Craig's First Street from Colorado 13 East to the city limits at Colorado 394.

HMR 4.13.2.34 Moffat County Road CG 2 (First Street) from Craig city limits at Colorado 394 East to US 40.

HMR 4.13.3 Additional Routes for Gasoline, Diesel Fuel, and Liquefied Petroleum Gas (LPG).

While generally required to employ designated state, federal, and interstate roadways, transporters of gasoline, diesel fuel, and LPG may routinely travel on the following state and federal highways:

HMR 4.13.3.1 US 160 from Interstate 25 to the Kansas border.

HMR 4.13.3.2 US 350 from US 160 to US 50.

HMR 4.13.3.3 US 385 from US 50 to US 40.

HMR 4.13.3.4 SH 96 from SH 71 to the Kansas border.

HMR 4.13.3.5 SH 109 from US 160 to East 3rd Street in La Junta.

HMR 4.13.4 Additional Route for Gasoline, Diesel Fuel, LPG, and Crude Oil.

While generally required to employ designated state, federal, and interstate roadways, transporters of gasoline, diesel fuel, LPG, and crude oil may routinely travel on Weld County Road 49, also identified as Weld County Highway, between Interstate 76 and US 34.

HMR 4.14 Closing of Designated Hazardous Materials Routes Must be Communicated.

The closing of a public road that is designated as a hazardous materials route, or restriction on the movement of traffic over the same due to highway construction, severe weather, or other factors must be communicated by the CDOT or the affected county road and bridge office as soon as possible to the CSP Hazardous Materials Section during normal business hours at (303) 273 – 1900. The CSP Denver Regional Communications Center must be contacted when these events occur outside normal business hours at (303) 273 - 4501.

HMR 4.15 CSP Declaration of Emergency, Temporary, or Alternate Hazardous Materials Routes.

Under Section 42-20-301 (1) (a), CRS, the CSP has the sole authority to designate which public roads are permitted to be used by motor vehicles transporting hazardous materials and which are not. Included in this authority is the ability to apply conditions to the use of hazardous materials routes consistent with the scope of authority provided to the CSP through Section 42-20-301, CRS.

HMR 4.15.1 Routing in Response to Emergency Declaration.

In the event of a declaration of emergency, the Chief may determine a temporary alternate hazardous materials transportation route or routes, which may then remain in effect for a period not to exceed the duration of the declared emergency.

HMR 4.15.2 Temporary Routing in Response to Events.

Consistent with the authority granted by Section 42-20-301 (1) (b), CRS, the CSP may include or apply conditions or restrictions to vehicles transporting hazardous materials not defined as agricultural products and are listed in Tables 1 and 2 of 49 CFR 172.504 that are consistent with the restrictions of Section 42-20-301 (1) (b) and (2), CRS.

HMR 4.15.2.1 Construction, Weather, and Other Limited Events.

The CSP may temporarily declare an alternate route when a hazardous materials route is restricted and/or closed due to highway construction, weather, or other restrictions or conditions affecting the movement of traffic (i.e., traffic incidents, motorcades, or other special events). The temporary route declaration will be for a set period not to exceed the activity or event affecting the ability to use a designated hazardous materials route.

HMR 4.15.3 Temporary Routing Under Section 42-20-301 (b), CRS, in Response to Other Conditions.

As may be advisable and in the interest of public welfare and safety, the CSP may exercise its authority under Section 42-20-301 (b), CRS, to designate public roads temporarily or to apply conditions to the use of existing designated hazardous materials routes in response to specific conditions reasonably determined by the CSP to present an immediate negative impact to public welfare and safety. Notice of any temporary hazardous material routing designation will be forwarded to the CDOT and the affected municipality, city, city and county, affected industry, and/or the affected road and bridge authority.

HMR 4.15.3.1 Effective Initial Designation Period. An initial temporary hazardous materials route designation or initial conditions determination affecting a hazardous materials route by the CSP will remain in effect for a period not to exceed the duration of the condition nor to exceed 12 months, absent subsequent review by the CSP.

HMR 4.15.3.2 Condition Review, Extension, and Resolution. A temporary hazardous materials route designation or conditions upon an existing hazardous materials route by the CSP may not remain in effect beyond 12 months without a review to evaluate if the condition(s) reasonably determined to present the immediate negative impact(s) to public welfare and safety remain. If this evaluation results in a determination that the condition(s) persist, the CSP will extend the temporary designation initially for up to 180 days.

HMR 4.15.3.2.1 Opportunity to Petition or Correct. A Petitioning Entity or the CDOT is encouraged to either take appropriate action consistent with resolving the condition(s) necessitating the temporary alternate route designation or to petition the CSP for a permanent routing designation. Either may be accomplished at any point before or after a temporary route designation. It is encouraged that such actions commence before the expiration of any 180-day extension resulting from a 12-month review of a temporary route designation by the CSP.

HMR 4.15.3.2.2 Action During Temporary Designation Period. Before the expiration of any temporary alternate routing designation, the CSP may consider any substantive steps taken to either address the condition(s) that resulted in the temporary alternate designation or an impending or received hazardous materials Routing Petition Application

when determining if it is appropriate to extend a designation for an additional period.

HMR 4.15.3.3 Temporary Designation or Conditions Represent Informal Notice a Hazardous Materials Route May No Longer Satisfy the Statute. Temporary designation of a hazardous materials route or the determination to apply temporary restrictions to an existing hazardous materials route by the CSP in response to a condition or conditions reasonably determined to represent an immediate negative impact on public welfare and safety represents informal notice that an existing designated hazardous materials route may no longer satisfy statutory approval requirements referenced within these rules. Temporary route designations or temporary conditions placed on an existing designated hazardous materials route will result in a route review within 12 months from the CSP that may result in permanent changes to existing routing or alternate route determination(s) consistent with the route review process outlined in these rules.

HMR 4.15.3.3.1 Petition Consultation. If determined appropriate, the CSP will consult with an affected Petitioning Entity to submit a petition consistent with Section 42-20-302, CRS, and these rules.

HMR 4.15.3.4 No Curfews Except as Permissible Under Section 42-20-301 (3) (b), CRS. Except for the application of decisions of the Transportation Commission affecting the permissible hours of operation for the EJMT by the CSP as permissible through Section 42-20-301 (3) (b), CRS, the CSP will not impose hours of operation or curfews as conditions or restrictions as part of a designated route restriction or condition. Moreover, the CSP will not impose conditions or restrictions on motor vehicles being used to transport to or from a farm or ranch products necessary for agricultural production and operated consistently with Section 42-20-301 (c), CRS, beyond those conditions affecting permissible hours of operation for the EJMT, consistent with Section 42-20-301 (3) (a) and (b), CRS.

HMR 4.15.3.5 Applicable to Tables 1 and 2, 49 CFR 172.504, as Limited by Statute. Any CSP temporary hazardous materials route designations or conditions upon existing designated hazardous materials routes apply only to those listed in Tables 1 and 2 of 49 CFR 172.504 as specifically provided within Section 42-20-301 (2), CRS.

HMR 4.15.3.6 Notice Temporary Route Designation is No Longer Valid. Upon determination that conditions no longer

reasonably warrant a temporary hazardous materials route designation or conditions applied by the CSP, the CSP will provide notice to the CDOT and any affected municipality, city, city and county, affected industry, and/or affected road/bridge authority.

HMR 4.16 Violation Penalty.

Any person convicted of shipping or transporting hazardous materials in violation of any of the rules of this part will be subject to the penalties set forth within Section 42-20-305, CRS.

Part 5 Transportation of Nuclear Materials (NMT)

NMT 5.0 Definitions.

The definitions provided in Sections 42-20-103 and 42-20-402, CRS, apply to these rules and regulations. The following additional definition will also apply:

NMT 5.0.1 Complaint: A written document stating the essential facts and supporting documentation regarding any offense(s) charged.

NMT 5.1 Application of 49 CFR to Nuclear Materials Transportation and Application of Article 10 CFR to Licensees Within Colorado.

The transportation of nuclear materials, as they are defined within Section 42-20-402 (3) (a) – (c), CRS, by motor vehicles in Colorado must comply with the regulations contained in

49 CFR 107 Hazardous Materials Program Procedures

49 CFR 171 General Information, Regulations, and Definitions

49 CFR 172 Hazardous Materials Table, Special Provisions, Hazardous Materials Communications, Emergency Response Information, Training Requirements, and Security Plans

49 CFR 173 Shippers- General Requirements for Shipments and Packagings

49 CFR 177 Carriage by Public Highway

49 CFR 178 Specifications for Packagings

49 CFR 180 Continuing Qualification and Maintenance of Packagings

49 CFR 387 Minimum Levels of Financial Responsibility for Motor Carriers

49 CFR 397 Transportation of Hazardous Materials Driving; and Parking Rules

of the United States Department of Transportation Hazardous Materials Regulations as the same were effective on October 1, 2025. Authorized by Section 42-20-403, CRS, these rules are promulgated by the Chief for the safe transportation of nuclear materials with the following modifications:

NMT 5.1.1 Definition of Person.

The definition of a person provided within 49 CFR 107.1 does not apply. Instead, the definition of person set forth by Part 1.3.15 of these rules will apply.

NMT 5.1.2 Advance Notification of Nuclear Shipments.

Licensees shipping a highway route-controlled quantity of nuclear material, as defined in 49 CFR 173.403, within or through the state, and not otherwise required to comply with the provisions of 10 CFR 71.97 or 73.37, must provide advanced notification of the nuclear shipment to the Governor or their designee under the requirements of 10 CFR 71.97 (c).

NMT 5.2 Inspection Requirements.

Inspection procedures by the CSP are consistent with the CVSA inspection procedures, decal application policies, and OOS criteria, as each is published and is in effect on April 1, 2026.

NMT 5.2.1 Shipments Entering Colorado.

All motor vehicles carrying nuclear materials and entering Colorado on public roads must be inspected by an authorized Enforcement Official of the CSP nearest to the point at which the shipment of nuclear materials enters the state or at a location specified by the CSP.

NMT 5.2.2 Shipments Originating in Colorado.

All motor vehicles carrying nuclear materials, where the shipment thereof originates within Colorado, must be inspected by an authorized CSP Enforcement Official at the point of origin.

NMT 5.2.3 Continued Transport After a Crash.

Before being authorized to continue after a crash, a motor vehicle and shipping container transporting nuclear materials must be inspected by a qualified inspector consistent with NMT 5 of these rules and applicable statutes.

NMT 5.2.4 No Transport of Nuclear Materials Absent Permit.

No person will transport nuclear materials into, within, through, or out of Colorado unless and until a permit authorizing the transportation of the nuclear materials is issued consistent with statutes, these rules, and applicable rules adopted by the CDOT.

NMT 5.3 Nuclear Materials Annual Permit Applications and Fees.

Upon review and approval of an annual nuclear materials transportation permit application, the CDOT will issue an annual nuclear materials transportation permit according to the authority provided by Section 42-20-501, CRS. All annual nuclear materials transportation permit applications and fees must be submitted to the CDOT Freight Mobility and Safety Branch at 2829 W. Howard Pl., Denver, CO., 80204. Information about the application, fees, terms, and process may be downloaded from the CDOT online at <https://coopr.codot.gov>.

NMT 5.3.1 Annual Cost and Term.

The annual nuclear materials transport permit fee is \$500, unless otherwise indicated, and each permit will be valid for one year from the date of issue. All applicable fees due must be paid in a manner acceptable to the CDOT.

NMT 5.3.2 Additional Applicable Nuclear Transport Fees.

In addition to the annual permit fee, each carrier must pay a \$200 fee for each shipment transported, unless otherwise indicated. Payment of these fees must occur consistent with Section 42-20-502, CRS.

NMT 5.3.2.1 Regular Monthly Shipments. If regularly scheduled nuclear materials shipments are made, the carrier may arrange with the CDOT to pay shipment fees monthly.

NMT 5.4 Conditions Applicable to Nuclear Materials Permits.

The following conditions apply to the use of nuclear materials permits in Colorado:

NMT 5.4.1 Shipping Papers Required.

Each person transporting nuclear materials within this state must carry a copy of the shipping papers required in 49 CFR 172, Subpart C, as revised October 1, 2025, and a paper or electronic copy of the nuclear materials transportation permit in the vehicle.

NMT 5.4.2 USDOT Number Required.

Nuclear materials transporters operating within the state of Colorado are required to obtain a USDOT identification number under the provisions of

49 CFR 290.19 before the submission of a nuclear materials transport application.

NMT 5.4.3 Nuclear Transportation Permit Copy Required.

A copy of the nuclear materials transportation permit must be placed in each motor vehicle operated within or through Colorado, except that, if a peace officer or any other Enforcement Official may determine that the nuclear materials transportation permit can be electronically verified at the time of the contact, a copy of the permit need not be carried by the person transporting the nuclear materials.

NMT 5.4.4 Nuclear Transportation Permit Not to be Altered.

No nuclear materials transportation permit is to be altered, amended, or copied unless authorized in writing by the CDOT, or, in the instance of a single permit, by any law Enforcement Official.

NMT 5.5 Authority to Inspect Motor Vehicles, Books, and Records Related to the Transport of Nuclear Materials.

Enforcement Officials of the CSP and/or the PUC have the authority to and may inspect motor vehicles, drivers, books, and records relevant to transporting nuclear materials by motor vehicles.

NMT 5.5.1 CSP Inspection of Nuclear Materials Transporters.

CSP Enforcement Officials have the authority to and may at any time inspect any vehicle, driver, cargo, shipping papers, nuclear materials transportation permit, and any other papers required by law or rule to be carried when transporting nuclear materials on public roads in Colorado.

NMT 5.5.2 CSP and PUC Inspection of Records Relevant to Nuclear Materials Transportation.

CSP and PUC Enforcement Officials have the authority to and may inspect any books and records of any carrier, shipper, or the person transporting, shipping, or causing the transport or shipment of any nuclear materials within Colorado.

NMT 5.5.3 Sharing of Violation Data With CDOT.

The CSP will inform the CDOT in writing of information relevant to violations identified and assessed against a person with a nuclear materials transport permit and engaged in transporting nuclear materials by motor vehicle. Violations discovered during inspections or compliance reviews are shared to promote the joint interest of public safety and

effective enforcement of nuclear materials transport permit conditions, these rules, applicable statutes, and regulations.

NMT 5.6 Violations- Civil Penalties.

Any person who violates any provision of Article 20, Title 42, Parts 4 and 5, CRS, or these rules and regulations, except for those violations enumerated in subsection (3) of Section 42-20-406, CRS, and of Section 42-20-505, CRS, is subject to a civil penalty of not more than \$10,000 per day for each day during which a violation occurs. The penalty will be assessed by the Chief upon receipt of a complaint by any investigative personnel of the PUC or CSP, and after written notice and opportunity for a hearing according to Section 24-4-105, CRS.

NMT 5.6.1 Violations of Sections 42-20-406 (3) and 42-20-505, CRS.

Civil penalties for violations of Sections 42-20-406 (3) and 42-20-505 (2), CRS, will be assessed consistent with the statute and will appear on the complaint prior to service.

NMT 5.6.2 Violations are Subject to Penalties Within Section 42-20-505, CRS.

Any person who violates any of the provisions of NMT 5.3 or NMT 5.4 of these rules is subject to the civil penalties listed in Section 42-20-505, CRS.

NMT 5.6.3 Penalties Assessed Daily for Violation of Section 42-20-408, CRS.

Any person who violates a compliance order of the Chief that is not subject to a stay pending judicial review and which has been issued according to Section 42-20-408, CRS, will be subject to a civil penalty of not more than \$10,000 per day for each day during which the violation occurs.

NMT 5.7 Civil Penalty Assessment Procedures.

All violations of statutes referenced in NMT 5.6, NMT 5.6.2, and NMT 5.6.3 will be investigated and summarized in a complaint filed by an authorized investigator of the PUC or the CSP. The investigation will include, as applicable, the nature and gravity of any violations, the degree of culpability, any history of violations, and other public safety concerns. The complaint will be served in person or by certified mail at the motor carrier's last known address on file with the CSP or the CDOT.

NMT 5.7.1 Civil Penalties Assessed Pursuant Sections 42-20-406 (3) and 42-20-505 (2), CRS.

Civil penalties for violations of Sections 42-20-406 (3) and 42-20-505 (2), CRS, will be assessed according to the statute and will appear on the complaint before service.

NMT 5.7.2 Notice and Response for Violations of NMT 5.6 and Section 42-20-505 (1), CRS.

Complaints containing violations of NMT 4, NMT 5.6, and Section 42-20-505 (1), CRS, must provide notice of an opportunity to appear before the Chief to contest the violation or to present mitigating factors to be considered in determining the amount of the civil penalty to be assessed.

NMT 5.7.2.1 Carrier Response to Complaint. Within 30 days of service of the complaint, the carrier must file a written response containing:

NMT 5.7.2.1.1 A request for a formal hearing before the Chief according to Section 24-4-105, CRS;

NMT 5.7.2.1.2 A request for an informal hearing before the Chief; or

NMT 5.7.2.1.3 A waiver of the right to a hearing before the Chief.

NMT 5.7.2.2 Request for Informal Hearing Waives Formal Hearing. A request for an informal hearing before the Chief will constitute a waiver of the right to a formal hearing under Section 24-4-105, CRS.

NMT 5.7.2.3 Failure to File Timely Response to Complaint. Failure to timely file a written response will constitute a default. Upon entry of a default, the Chief will assess a civil penalty against the carrier. For good cause shown, the entry of default may be set aside by the Chief within 10 days of the default.

NMT 5.7.3 Chief Will Issue a Final Written Agency Decision.

Within 30 days of receiving all relevant information, the Chief will issue a final written agency decision to include the specific violations and civil penalties assessed. The final agency decision will be served on the carrier in person or by first-class mail at the last known address on file with the CSP or the CDOT, whichever is more current.

NMT 5.8 Scheduling of Nuclear Materials Transports.

Motor vehicles transporting nuclear materials must schedule trips through all Colorado municipalities with a population over 50,000 to avoid rush-hour traffic.

NMT 5.8.1 Rush-Hour Defined.

For purposes of these rules, rush-hour is defined to be between 6:00 am and 9:00 am and 3:00 pm to 6:00 pm, Monday through Friday.

NMT 5.8.2 Geographic Applicability.

As a practical matter, this scheduling requirement applies to the transport of nuclear materials through the cities of Ft. Collins, Denver (greater metropolitan area), Colorado Springs, and Pueblo.

NMT 5.8.3 Access of Ft. Collins Weigh Station During Rush-Hour.

Motor vehicles transporting nuclear materials may access the CSP POE weigh station on Interstate 25 in Ft. Collins during rush-hour periods to be inspected as required by Section 42-20-404, CRS.

NMT 5.8.4 Temporary Schedule Variances.

Provided a variance is not in violation of relevant state statutes, appropriate federal regulations, or these rules and is in the best interests of public safety, the CSP Hazardous Materials Section may consider and grant requests allowing for the transport of nuclear materials through areas identified in NMT 5.8.2 during hours otherwise prohibited by NMT 5.8 and NMT 5.8.1.

NMT 5.9 Escort Requirements for Nuclear Materials Transports.

Based on security and/or emergency response concerns, the CSP may require motor vehicles transporting nuclear materials to be escorted by a Hazardous Materials Team when traveling within or through Colorado.

NMT 5.9.1 Hazardous Materials Team is Not a Replacement for Irradiated Reactor Fuel Transport Escorts.

When required, a CSP Hazardous Materials Team escort will supplement, but not replace, the escort(s) required for a shipment of irradiated reactor fuel under the provisions of 10 CFR 73.37 (b) and (c).

NMT 5.9.2 Licensee Will be Notified if CSP Escort is Required.

A licensee, as defined within 10 CFR 2.4, will be notified that a CSP Hazardous Materials Team escort is required following the receipt of the shipment notification by the Governor or Governor's designee, consistent with the provisions of 10 CFR 73.37 (b) and (c).

NMT 5.10 Notification of Nuclear Materials Incidents.

A motor vehicle driver involved in a spill or potential spill of nuclear materials must comply with the incident notification provisions contained in HMT 2.3.

NMT 5.10.1 Notification of Nuclear Materials Incidents.

If the driver of a motor vehicle transporting nuclear materials is involved in a motor vehicle crash, regardless of whether the motor vehicle is damaged, the CSP must be immediately notified at (303) 239 – 4501.

Part 6 Nuclear Material Route Designation (NMR)

NMR 6.0 Routes to be Used for the Transportation of Nuclear Materials.

To ensure safe and environmentally acceptable transportation of nuclear materials within Colorado, motor vehicles transporting nuclear materials must travel only on the following designated highway segments:

NMR 6.0.1 N I-25 to E I-70 and Its Reverse.

For vehicles traveling North on Interstate Highway 25 and then going East on Interstate Highway 70, the following route will be used. Vehicles traveling in the opposite direction will use the same routing in the opposite direction:

NMR 6.0.1.1 On Interstate Highway 25 between the Colorado – New Mexico state line and the junction with Interstate Highway 225; then,

NMR 6.0.1.2 On Interstate Highway 225 between the junction with Interstate Highway 25 and the junction with Interstate Highway 70; then,

NMR 6.0.1.3 On Interstate Highway 70 between the junction with Interstate Highway 225 and the Colorado – Kansas state line.

NMR 6.0.2 W I-70 to N I-25 and Its Reverse.

For vehicles traveling West on Interstate Highway 70 and then going North on Interstate Highway 25, the following route will be used. Vehicles traveling in the opposite direction will use the same routing in the opposite direction:

NMR 6.0.2.1 On Interstate Highway 70 between the Colorado – Kansas state line and the junction with Interstate Highway 270; then,

NMR 6.0.2.2 On Interstate Highway 270 between the junction with Interstate Highway 70 and the junction with Interstate Highway 25; then,

NMR 6.0.2.3 On Interstate Highway 25 between the junction with Interstate Highway 270 and the Colorado – Wyoming state line.

NMR 6.0.3 N I-25 at CO – WY and CO – NM and Its Reverse.

For vehicles traveling North on Interstate Highway 25 between the Colorado – New Mexico state line and the Colorado – Wyoming state line, the following route will be used. Vehicles traveling in the opposite direction will use the same routing in the opposite direction.

NMR 6.0.3.1 On Interstate Highway 25 between the Colorado – New Mexico state line and the Colorado – Wyoming state line.

NMR 6.0.4 N I-25 to N I-76 and Its Reverse.

For vehicles traveling North on Interstate Highway 25 and then going North on Interstate Highway 76, the following route will be used. Vehicles traveling in the opposite direction will use the same routing in the opposite direction:

NMR 6.0.4.1 On Interstate Highway 25 between the Colorado – New Mexico state line and the junction with Interstate Highway 76; then,

NMR 6.0.4.2 On Interstate Highway 76 between the junction with Interstate Highway 25 and the Colorado – Nebraska state line.

NMR 6.1 Prohibited Highway Segments.

Motor vehicles transporting nuclear materials shall under no circumstances travel on those state highway segments designated as follows:

NMR 6.1.1 Milepost 361.630.

On Interstate Highway 70 between the Colorado – Utah state line and the junction with US 40, at milepost 361.630.

NMR 6.1.2 Mileposts 274.039 and 276.572.

On Interstate Highway 70 between the junction with Interstate Highway 25 at milepost 274.039 and the junction with State Highway 2 at milepost 276.572.

NMR 6.2 Route Deviation Exceptions.

No carrier transporting nuclear materials shall deviate from the routes designated in this Part 6 except for:

NMR 6.2.1 Emergency Safety.

In cases of emergency conditions, making the continued use of the designated route unsafe;

NMR 6.2.2 Road Closure.

When the designated route is closed due to road conditions, road construction, or maintenance operations;

NMR 6.2.3 Local Operation.

To make local pick-ups and deliveries; or

NMR 6.2.4 Refueling.

When making local pick-ups and deliveries or when refueling, the carrier must minimize the distance traveled on non-designated routes.

NMR 6.3 Emergency Road Closure.

The closing of a public road that is designated as a nuclear materials route, or restrictions on the movement of traffic over the same due to highway construction, severe weather, or other factors must be communicated by the CDOT or the affected county road and bridge office as soon as possible to the CSP Hazardous Materials Section during normal business hours at (303)-273-1900. The CSP Denver Regional Communication Center must be contacted where these events occur outside of normal business hours at (303)-239-4501.

NMR 6.3.1 Determination of Alternate Route.

When a nuclear materials route is restricted and/or closed, the CSP will determine if a temporary alternate route should be identified.

NMR 6.3.2 Notification of Temporary Designation.

The CSP will notify the appropriate local law enforcement agencies and affected industry concerning any temporary closure and if an alternate route has been temporarily designated. The CSP will similarly notify the same upon the termination of temporary closure and/or temporary alternate route designation.

NMR 6.3.3 Escort Required.

Vehicles transporting nuclear materials are required to be escorted when traveling off a designated nuclear materials route due to an emergency road closure or other conditions that restrict the movement of traffic over the same. The escort will be provided by the CSP, or when previously arranged by the CSP, by the local law enforcement agency in whose jurisdiction the closure or restriction occurs.

Part 7 Intrastate Transportation of Agricultural Products (HMA)

HMA 7.0 Authority.

The CSP is mandated by the provisions of Section 42-20-108.5, CRS, to adopt rules and regulations concerning the intrastate transportation of agricultural products in Colorado.

HMA 7.1 Applicability.

These rules and regulations apply to any person transporting an agricultural product consistent with 49 CFR 173.5, as revised October 1, 2025.

HMA 7.2 Definitions.

For purposes of this Part 7, the following definitions apply:

HMA 7.2.1 Agricultural Product: As defined by Section 42-20-108.5 (2) (a), CRS, is a hazardous material, other than hazardous waste, whose end use directly supports the production of an agricultural commodity, including but not limited to a fertilizer, pesticide, soil amendment, or fuel. An agricultural product is limited to materials in Classes 3, 8, or 9, divisions 2.1, 2.2, 5.1, 6.1, or an ORM-D material as identified in 49 CFR 172 and 173.

HMA 7.2.2 Farmer: As defined by Section 42-20-108.5 (2) (b), CRS, is a person or such person's agent or contractor engaged in the production or raising of crops, poultry, or livestock.

HMA 7.3 Exemptions from the Federal Rules in 49 CFR 173.5.

The Chief hereby adopts by rule and regulation the federal agricultural product exemption provisions of 49 CFR 173.5, as authorized by Section 42-20-108.5, CRS.

Part 8 Publications, Resources, Effective Date, and Severability (HPR)

HPR 8.0 Publications and Rules Incorporated by Reference.

All publications, standards, guidelines, and rules adopted and incorporated by reference in these rules will be provided to and made available for examination at any state publications depository library as is required by Section 24-4-103 (12.5), CRS. The following publications, standards, guidelines, and rules are adopted as each may be amended within these rules, consistent with Section 24-4-103 (12.5), CRS:

HPR 8.01.1 Commercial Vehicle Safety Alliance (2026). **North American Standard Out-of-Service Criteria (OOSC)**. April 1, 2026. Greenbelt, MD: Author.

HPR 8.01.2 U.S. Department of Transportation Federal Motor Carrier Safety Administration (2025). **Federal Motor Carrier Safety Regulations (FMCSRs)**, 49 CFR 40, 380, 382, 385, 387, 390, 397, 399, and Appendix A (October 1, 2025). This information is also available online at <https://www.ecfr.gov>.

HPR 8.01.3 U.S. Department of Transportation Pipeline and Hazardous Materials Safety Administration (2025). **Pipeline and Hazardous Materials Safety Regulations (PHMSRs)**, 49 CFR 107, 171 -173, 177, 178, and 180 (October 1, 2025). This information is also available online at <https://www.ecfr.gov>.

HPR 8.01.4 Nuclear Regulatory Commission (2025). **Nuclear Regulatory Commission Regulations (NRCRs)**, 10 CFR 2.4, 71.97, 73.37, and 180 (2025). This information is also available online at <https://www.ecfr.gov>.

HPR 8.01.5 U.S. Department of Transportation Pipeline and Hazardous Materials Safety Administration (2024). **2024 Emergency Response Guidebook** (February 1, 2024). This information is available online at <https://rosap.ntl.bts.gov/view/dot/.74109>.

HPR 8.1 Copies of Publications Maintained by the CSP.

The CSP Hazardous Materials Section will maintain copies of the complete texts of each of the aforementioned publications, standards, guidelines, and rules and will make them available for public inspection during regular business hours. Interested parties may access these documents free of charge online. Interested parties may also inspect referenced incorporated materials and/or obtain copies of the adopted standards for a reasonable fee by contacting the CSP Central Records Unit at 700 Kipling St., Lakewood, CO., 80215. Copies of the adopted publications, standards, guidelines, and rules may also be available from the organizations of their original issue:

HPR 8.1.1 2026 Out-of-Service Inspection Criteria: Commercial Vehicle Safety Alliance (CVSA), 6303 Ivy Lane, Suite 310, Greenbelt, Maryland, 20770-6319. Phone: (301)-830-6143. Email: cvsahq@cvsa.org.

HPR 8.1.2 Federal Motor Carrier Safety Regulations (FMCSRs): Federal Motor Carrier Safety Administration (FMCSA), U.S. Department of Transportation, 1200 New Jersey Ave., SE Room W-65-206, Washington, DC, 20590. Phone: 1-(800)-832-5660. Website: www.fmcsa.dot.gov.

HPR 8.1.3 Pipeline and Hazardous Materials Safety Regulations (PHMSRs): Pipeline and Hazardous Materials Safety Administration (PHMSA), U.S. Department of Transportation, 1200 New Jersey Ave., SE, Washington, DC, 20590. Phone: (202)-366-4433. Website: www.phmsa.dot.gov.

HPR 8.1.4 Nuclear Regulatory Commission Regulations (NRCRs). U.S. Nuclear Regulatory Commission, Washington, DC, 20555-0001. Phone: 1-(800)-368-5642 or (301)-415-7000. Website: www.nrc.gov.

HPR 8.1.5 2024 Emergency Response Guidebook. Hazardous Materials Training Program, U.S. Department of Transportation, Pipeline and Hazardous Materials Safety Administration, 1200 New Jersey Ave., SE, Washington, DC, 20590. Phone: 1-(202)-366-4900. Website: www.phmsa.dot.gov.

HPR 8.2 Later Editions are Not Incorporated by Reference.

These rules do not include later amendments to or editions of any publications, standards, guidelines, or rules incorporated by reference herein.

HPR 8.3 Rules are Available Online.

These rules are available online through the CDPS Rulemaking Information website at <https://publicsafety.colorado.gov/cdps-rules-colorado-code-of-regulations>.

HPR 8.4 Inquiries About Rules.

All contact with the CSP concerning these rules should be addressed to the Colorado State Patrol Hazardous Materials Section, 15065 S. Golden Rd., Golden, CO., 80401. Phone (303)-273-1900.

HPR 8.5 Effective Date.

The effective date of these rules is April 1, 2026.

HPR 8.6 Severability.

If any provision of these rules or the application thereof to any person or circumstance is determined to be unlawful or invalid, the remaining provisions of these rules will not be affected, absent a specific reference.

Editor's Notes

History

Entire rule eff. 04/30/2007.

PART 1 Sections HMT 1, HMT 2, HMT 4, HMT 5; PART 2 Section HMP 1; PART 3 Section HMR 9; PART IV (Definitions), NMT 1, NMT 2, NMT 3, NMT 6, NMT 7 thru NMT 10; PART 5 Section NMR 1; PART VI Applicability, Publications and Rules. eff. 04/30/2008.

PART 1 Sections HMT 1, HMT 2, HMT4, HMT5; PART 3 Sections HMR 8, HMR 9; PART 4 Sections NMT 2, NMT 3; PART 6 Applicability eff. 05/30/2009.

Entire rule eff. 04/30/2010.

Entire rule eff. 04/30/2011.

Entire rule eff. 04/30/2012.

PART I Sections HMT 1, HMT 2, HMT 4, HMT 5; PART II Sections HMP 2, HMP 5; PART III Sections HMR 1, HMR 8, HMR 9; PART IV Sections NMT 1, NMT 2, NMT 3; PART VI Applicability eff. 04/30/2013.

PART I, PART II Section HMP 1, PART III Sections HMR 8, HMR 9, PART IV Sections NMT 1, NMT 2, NMT 3, PART V, PART VI Applicability eff. 04/01/2014.

Entire rule eff. 04/01/2015.

PART I Sections HMT 1, HMT 2, HMT 4, HMT 5, PART II Sections HMP 1, HMP 3, PART III Sections HMR 1 C, HMR 5 A, HMR 6 C, HMR 9, PART IV Sections NMT 1 A, NMT 2 C, NMT 3, NMT 6 C, PART V Section NMR 2 A, PART VI Applicability, Section HMA 1 B eff. 03/30/2016.

Entire rule eff. 04/30/2017.

PART I Sections HMT 1, HMT 2, HMT 4, HMT 5 PART II Definitions, Sections HMP 2, HMP 5, PART III Sections HMR 5, HMR 9, Part IV Sections NMT 1-NMT 3, PART VI Applicability eff. 03/17/2018.

PART I Sections HMT 1, HMT 2 B, HMT 4 B-C, HMT 5 A, PART II Sections HMP 2 A, HMP 5 A, PART III Sections HMR 1 B, HMR 8 B, HMR 9 D-E, PART IV Sections NMT 1 A, NMT 2 C, NMT 3 E-F, NMT 6 D, NMT 8 B, PART VI Section HMA 1 eff. 03/17/2019.

Entire rule eff. 04/01/2020.

Entire rule eff. 04/01/2021.

Entire rule eff. 04/01/2022.

Entire rule eff. 03/31/2023.

Entire rule eff. 04/01/2024.

Entire rule eff. 04/01/2025.

Entire rule eff. 04/01/2026.